NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH-V
NEW DELHI

CA (CAA)-144/ND/2019

CORAM:
(Dr.) P.S.N.PRASAD
Hon'ble Member (J)

SMT. SUMITA PURKAYASTHA
Hon'ble Member (T)

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING OF NEW DELHI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 29.10.2019

NAME OF THE COMPANY: In the matter of Amalgamation

1. M/s Itron Metering Solutions India Private Limited
   Applicant Company No. 1/Transferor Company

AND

2. M/s Itron India Private Limited
   Applicant Company No. 2/Transferee Company

SECTION OF THE COMPANIES ACT: 230-232

ORDER

As Per(Dr.) P.S.N Prasad, (Member Judicial)

Order delivered on 20.11.2019

1. This petition by way of Second Motion is admitted and fixed for hearing and final disposal on 13th January, 2020.

2. Learned Counsel for the Petitioner Companies submits that in terms of the Order dated 16th October, 2019 passed by this Tribunal in Company Application No. CA(CAA)-139(ND)2019, the meeting of all Equity Shareholders and unsecured creditors of the applicant companies for the proposed Scheme of Amalgamation between the Transferor

Company/Applicant No. 1 with the Transferee Company/ Applicant No. 2 had been dispensed with in view of their consent affidavits being on record.

There were no secured creditors of the Applicant Companies.

3. It is therefore now directed that the notice of final hearing be fixed for 13th January, 2020 and shall be advertised in the daily newspapers namely, the "Business Standard" in English (Delhi Edition) and "Jansatta" in Hindi (Delhi Edition), not less than 10 days before the aforesaid date fixed for hearing.

4. In addition to the above public notice, the applicant companies shall individually serve the notice of the Petition as filed before the Tribunal along with relevant annexures on the following Authorities namely, (a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs (c) Office of the Income Tax Department, Income Tax Officer (d) Additional Commissioner of Income Tax and (e) Office of the Official Liquidator and to such other Sectoral Regulatory Authorities who may govern the working of the respective Companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

5. All the applicants, shall at least 7 days before the date of hearing of the petition file an affidavit of service in relation to the paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator.

6. Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may file their objections on or before the date of hearing fixed herein, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.

Sd/-

(SUMITA PURKAYASTHA)

MEMBER (TECHNICAL)

Sd/-

((DR.) P.S.N.PRASAD)

MEMBER (JUDICIAL)

Pronounced today under Rule 151 of the NCLT Rules 2016 as Hon'ble Member(J), (Dr.) P.S.N. Prasad is not holding court today.

Sd/-

(PRABHAT KUMAR SHARMA)

COURT OFFICER